

		relate to the placement of a restocking cart or procedures/policies relating thereto. Further, plaintiff has provided no evidence as to why the confidential designation should be lifted when the protective order allows plaintiff to use the documents at depositions, with experts and at trial. Accordingly, the motion is GRANTED and documents designated CHEDRAUI 0030-0042 shall remain confidential pursuant to the terms of the protective order at ROA 51. Defendant is ordered to give notice.
6	Catanzarite v. City of Newport Beach	Cont.
7	Twining v. Tarvin	Cont. to 8/10.
8	Vivian v. MHCC, Inc.	Before the Court is an unopposed motion for leave to file a cross-complaint filed by defendant Affordable Coast Glass, Inc. (Defendant) As set forth more fully below, the motion is GRANTED. A party may apply to the court for leave to file a compulsory and/or permissive cross-complaint at any time during the course of the action. (Code of Civ. Proc. § 426.50, § 428.50, subd. (c).) A cross-complaint is compulsory if the cause of action against the plaintiff "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) In addition, a defendant can cross-complain against a codefendant or third party if the cause of action asserted arises out of the same transaction, occurrence, or series of transactions or occurrences set forth in the complaint. (Code of Civ. Proc. § 428.10, subd. (c).) Here, the proposed cross-complaint contains causes of action arising out of the same series or occurrences as the causes of action set forth in the the complaint. (Declaration of Sean Paden, Ex. A.) The Court finds granting leave to file the cross-complaint is in the interest of justice. Counsel for Defendant shall provide notice of this ruling.
9	Black v. Mercy House Living Center	O/C
10	Objective Standard Institute v. Barney et. al.	Before the Court is a motion by plaintiff Objective Standard Institute to seal portions of its evidentiary objections (ROA 46), the declaration of Annie Vinther Sanz (ROA 52) and the declaration of Jonathan D. Dykstra (ROA 140). For the reasons set forth below, the unopposed motion is GRANTED. Plaintiff's request for judicial notice is GRANTED. (Evid. Code § 452, subd. (d).) The Court finds an overriding interest exists that overcomes the right of public access to the records at issue, as the materials to be